

23PR00487 Estate of Moises Solano

County: santa-barbara

Division: Decedent's Estate

Department: 3 SM-Cook

Hearing date: 2023-11-29

Motion: Petition for Probate and Letters Testamentary

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Tentative Ruling: Estate of Moises Solano

Case Number

23PR00487

Case Type

Decedent's Estate

Hearing Date / Time

Wed, 11/29/2023 - 08:30

Nature of Proceedings

Petition for Probate and Letters Testamentary

Tentative Ruling

The following must be submitted:

Proof of Publication. No proof of publication was filed.

Jurisdiction of the Probate Court is obtained by publication in accordance with Probate Code section 8121. (Prob. Code, § 8003(b).) Publication requires the notice to be published in a newspaper adjudicated as a newspaper of general circulation in the city of decedent's residence (Prob. Code, §§ 8121, 7122) and to contain the substantially same language and format shown in Probate Code section 8100. If the city of decedent's residence has no newspaper adjudicated as a newspaper of general circulation, publication must occur "in a newspaper of general circulation in the county which is circulated within the area of the county in which the decedent resided or the property is located." (Prob. Code, §8121(b).)

Proof of Service of Notice of Hearing (Form DE-121). Notice must be given 15 days prior to hearing, served on all known heirs and devisees, as well as on the Personal Representative (if not the petitioner) and special notice requestors. (Prob. Code, §§ 8100 & 8110.) Notice must be sent to the person, not the person's representative. (§1220.) No such document was filed.

If the documents curing these deficiencies are not processed by 8:00 a.m. on November 27, 2023, it is recommended that the matter be continued to a date to be set by the Court at the hearing, unless the party appears and requests a different date, or submits a request for a different continuance date prior to the hearing. (Local Rule 1721(c)(2)(A-B).) If the matter is continued, documents must be submitted at least 10 days prior to the new hearing date to be considered.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the "Filing Description" field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge Timothy Staffel

Dept. 3 SM-Cook

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